

Pashupati Area Development Trust Act, 1987

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Pashupati Area Development Fund Act, 2044

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Amending Acts

1. Pashupati Area Development Fund (First Amendment) Act, 2049 2050.5.7
2. Some Nepal Acts Amending Act relating to Sports and Culture, 2053 2053.9.3

Certification and Publication Dates

3. Some Nepal Laws Amending Act, 2063 2063.6.28
4. Republic Strengthening and Some Nepal Laws Amending Act, 2066 2066.10.7
5. Some Nepal Acts Amending Act, 2072 2072.11.13
6. Some Nepal Acts Amending Act to make Compatible with the Constitution of Nepal, 2075 2075.11.19

Act No. 5 of the year 2044

An Act Made to Provide for the Pashupati Area Development Fund

Preamble: Whereas, it is desirable to make provisions relating to the Pashupati Area Development Fund for the protection, preservation and development of the Shree Pashupatinath area and for maintaining the piety and convenience of the general public,

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the Rashtriya Panchayat. 1. Short Title and Commencement:

1.1 This Act may be called the "Pashupati Area Development Fund Act, 2044". 1.2 This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

2.1.1 "Pashupati Area" means the area within the boundaries specified by the Government of Nepal by publishing a notice in the Nepal Gazette from time to time for the protection, preservation and development of the Pashupati Area. 2.1.2 "Fund" means the Pashupati Area Development Fund established pursuant to Section 3. 2.1.3 "Patron" means the Patron of the Fund. 2.1.4 "Chairperson" means the Chairperson of the Fund. Amended by the First Amendment. 2.1.5 "Council" means the Pashupati Area Development Fund Operating Council constituted pursuant to Section 8 for the operation of the Fund. Amended by the First Amendment. 2.1.6 "Member" also refers to the Vice-Chairperson, Treasurer, Member and Member-Secretary of the Council. 2.1.7 Omitted by the First Amendment. 2.1.8 Omitted by the First Amendment. 2.1.9 Omitted by the First Amendment. 2.1.10 "Donation" means cash, kind and movable and immovable property provided by a donor as assistance to the Fund. 2.1.11 "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Establishment of the Fund:

3.1 A Fund called the Pashupati Area Development Fund shall be established for the development of the

Pashupati Area. 3.2 The office of the Fund shall be located in Kathmandu. 4. Fund to be an Autonomous Body:

4.1 The Fund shall be an autonomous and corporate body with perpetual succession. 4.2 The Fund shall have its own separate seal for all its acts and business. 4.3 The seal and emblem of the Fund shall be as decided by the Council.

4.4 The Fund may, like a person, purchase, acquire, use, sell or otherwise deal with movable and immovable property as required. Amended by Some Nepal Laws Amending Act, 2063. 4.5 The Fund may, like a person, sue and be sued in the same name. Amended by Some Nepal Laws Amending Act, 2063. 5. Patron: The Prime Minister shall be the Patron of the Fund. 6. Objectives of the Fund: 6.1 The objectives of the Fund shall be as follows:- 6.1.1 Omitted by Some Nepal Laws Amending Act, 2063. To maintain the Pashupati Area of the worshipable Lord Shree Pashupatinath as a place of worship only for Hindus and as a Sanatan pilgrimage site, as the said Pashupati Area has been retained as such, 6.1.2 To ensure the systematic protection, preservation and development of the Pashupati Area in keeping with the ideal, dignity and importance of Shree Pashupatinath, 6.1.3 To preserve, protect and promote the ancient, historical, religious, cultural and nationally important objects or Amended by Some Nepal Laws Amending Act, 2063. sites, the movable and immovable properties of Shree Pashupatinath, and the natural heritage within the Pashupati Area. Added by the First Amendment. 6.1.3a. To make arrangements for conducting worship, cultural festivals, and social and public welfare activities in accordance with traditional religious practices and customs at the temples of all deities under the Raj Guthi located within the Pashupati Area, including the Shree Pashupatinath Temple, Amended by Some Nepal Laws Amending Act, 2063. 6.1.4 To systematically develop this holy pilgrimage site in a befitting manner Amended by Some Nepal Laws Amending Act, 2063. for the convenience of all Hindu followers and tourists from home and abroad, and to develop it as an international pilgrimage destination, and 6.1.5 To carry out other activities systematically in accordance with the objectives of this Act. Amended by Some Nepal Laws Amending Act, 2063. 7. Chairperson of the Fund: The Minister or Minister of State for Culture, Tourism and Civil Aviation shall be the Chairperson of the Fund. Amended by the First Amendment. 8. Constitution of the Pashupati Area Development Operating Council: 8.1 For the conduct and supervision of all business of the Fund, a Pashupati Area Development Fund Operating Council shall be constituted under the chairpersonship of the Minister or Minister of State for Culture, Tourism and Civil Aviation. Amended by Some Nepal Laws Amending Act, 2063.

8.2 The Council constituted pursuant to Sub-section 8.1 shall consist of the following members:- 8.2.1 Omitted by Some Nepal Laws Amending Act, 2063. 8.2.2 Omitted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. 8.2.3 Omitted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. 8.2.4 Omitted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. Added by Some Nepal Laws Amending Act, 2063. 8.2.4a. Member, National Planning Commission (looking after Culture) - Member 8.2.5 Mul Bhatta, Shree Pashupatinath Temple - Member 8.2.6 Amended by Some Nepal Acts Amending Act to make Compatible with the Constitution of Nepal, 2075. Secretary, Ministry of Culture, Tourism and Civil Aviation - Member Added by Some Nepal Laws Amending Act, 2063. 8.2.6a. Secretary, Ministry of Home Affairs - Member Added by Some Nepal Laws Amending Act, 2063. 8.2.7 Secretary, Ministry of Physical Infrastructure and Transport - Member 8.2.8 Omitted by Some Nepal Acts Amending Act, 2072. 8.2.9 Chief, Kathmandu Municipality - Member 8.2.10 Chairperson or Administrator, Guthi Corporation - Member 8.2.11 Persons nominated by the Chairperson from among Amended by Some Nepal Laws Amending Act, 2063. experts in culture and religious tourism, Added by Some Nepal Laws Amending Act, 2063. up to a maximum of seven persons - Member 8.2.12 Person nominated by the Chairperson - Treasurer 8.2.13 Person nominated by the Chairperson - Member-Secretary 8.3 Omitted by

Some Nepal Laws Amending Act, 2063. The Chairperson may make necessary additions, reductions or changes among the members of the Council. Notice of such additions, reductions or changes shall be published in the Nepal Gazette. 8.4 Repealed by the First Amendment. 8.5 While nominating members pursuant to Sub-section 8.2.11, at least one member shall be nominated from among social workers permanently residing within the Pashupati Area. 8.6 The term of office of nominated members shall be four years, and they may be re-nominated after the expiry of their term. 9. Repealed by the First Amendment. 10. Functions, Duties and Powers of the Council: 10.1 The functions, duties and powers of the Council shall be as follows:- 10.1.1 To be diligent in fulfilling the objectives of the Fund in accordance with this Act, 10.1.2 To follow and cause to be followed the guidance given from time to time by the Chairperson, 10.1.3 To approve the Master Plan and annual plan of the Pashupati Area Amended by Some Nepal Laws Amending Act, 2063. and programs in accordance therewith and Omitted by the First Amendment. cause them to be implemented, 10.1.4 Amended by the First Amendment.

To make arrangements for conducting all kinds of religious activities including worship, festivals, celebrations, and other activities according to traditional practices and customs at the temples of all deities under the Raj Guthi located within the Pashupati Area, including the Shree Pashupatinath Temple,

10.1.4a. Added by the First Amendment. To supervise the arrangements relating to other functions of Pashupati Amalkot Kachahari, Pashupati Bhandar Tahbil and Jayabageshwari Bhandar Tahbil, excluding cultivated land, and to determine policies relating to the functions of those bodies and give necessary directions,

10.1.4b. Added by the First Amendment. To organize or cause to be organized studies, research, workshops, seminars, etc., from time to time regarding the development of the Pashupati Area and the conduct of activities according to religious practices,

10.1.4c. Added by the First Amendment. To make arrangements for the protection of all kinds of houses, lands, monasteries, temples, shrines, rest houses, pavilions, platforms, etc., within the Pashupati Area related to Shree Pashupatinath and the deities situated within the Pashupati Area,

10.1.4d. Added by the First Amendment. To prepare an inventory disclosing the area of all kinds of Guthi lands, including fallow and barren lands, within or outside the Pashupati Area, belonging to monasteries, temples, rest houses, pavilions, platforms, stone spouts, ghats, gardens, forests and all deities within the Pashupati Area,

10.1.4e. Added by Some Nepal Laws Amending Act, 2063. To determine from time to time the rent, settlement-contract, lease or kind or cash royalty on the basis of the use and utilization of Guthi land of Shree Pashupatinath,

10.1.5 To make necessary arrangements for financial resources required for the implementation of plans and programs,

10.1.6 To constitute various committees and sub-committees as required within or outside the State of Nepal Amended by Some Nepal Laws Amending Act, 2063. for the fulfillment of the objectives of the Fund,

10.1.7 To determine policies for and give necessary guidance or direction to the various committees and sub-committees constituted pursuant to Sub-section 10.1.6, and to review and evaluate their work,

10.1.8 To prohibit and control activities that are not to be carried out in specific places within the Pashupati Area, taking into account the significance, sanctity and sensitivity of such places, and to prescribe such activities,

10.1.9 To cause the concerned bodies and persons to implement as expeditiously as possible the activities required for the fulfillment of the objectives of the Fund under this Act,

10.1.10 Added by the First Amendment.

To ensure the participation of local units and people in the implementation of plans and programs, and to provide clear information to the public from time to time so as to avoid confusion and misunderstanding among the people about the plans and programs to be implemented,

10.1.11 Added by the First Amendment. To maintain a clean environment by conducting construction, repair, preservation and sanitation in a systematic manner while developing the Pashupati Area in a planned manner,

10.1.12 Added by the First Amendment. To systematize other basic public utility facilities such as drinking water, drainage, sewage, electricity, telephone, roads, etc., and to adopt regular and effective procedures to maintain cleanliness and prevent littering,

10.1.13 Added by the First Amendment. To make arrangements for tree planting, forests, gardens, parks, wildlife, forest heritage, etc., in the Pashupati Area,

10.1.14 Added by the First Amendment. To systematically conserve and promote ghats, cremation sites, river waterways, water resources, water flow, sand, etc., in the Pashupati Area,

10.1.15 Added by the First Amendment. To establish necessary standards to prevent pollution and maintain a clean environment in the Pashupati Area, obtain approval from the Government of Nepal, and implement them,

10.1.16 Added by the First Amendment. To publicize through appropriate means and mobilize public participation to protect the Pashupati Area as a pilgrimage site and to bring about widespread public awareness for its proper use,

10.1.17 Added by the First Amendment. To prescribe necessary standards regarding construction in the Pashupati Area, to acquire land through the Government of Nepal in accordance with prevailing law, and to undertake activities such as allocating land for various purposes,

10.1.18 Added by Some Nepal Laws Amending Act, 2063. To make transparent, as prescribed, the accounts of donations, offerings, gifts, and regular and special worship offered at Shree Pashupatinath and the monasteries and temples within the Pashupati Area, and to deposit them in the Fund,

10.1.19 Added by Some Nepal Laws Amending Act, 2063. To spend the prescribed portion of the Fund's income on social and welfare activities such as education, health, environmental protection. Added by Some Nepal Laws Amending Act, 2063. 10a. Appointment of Chief Priest and Other Priests:

10a.1 The appointment of the Chief Priest of Shree Pashupatinath Temple and other priests and the priest of Vasukinath Temple shall be made by the Patron on the recommendation of the Council. 10a.2 The appointment of priests, storekeepers and overseers of other monasteries and temples other than those mentioned in Sub-section 10a.1 shall be made by the Council. 11. Meetings of the Council:

11.1 Amended by the First Amendment.

The Member-Secretary of the Council shall convene a meeting of the Council by fixing the date, time and place in accordance with the direction of the Chairperson or the person chairing the meeting of the Council.

(11.2) Amended by Some Nepal Laws Amending Act, 2063. 11.2 The Chairperson shall preside over the meeting of the Council, and in the absence of the Chairperson, a member chosen by the members present at the meeting from among themselves shall preside. (11.2a.) Amended by Some Nepal Laws Amending Act, 2063. 11.2a. Notwithstanding anything contained in Sub-section 11.2, the meeting of the Council that discusses the annual program, budget and quarterly progress review of the Council shall be presided over by the Chairperson. 11.3 While giving notice of a meeting, a reasonable time shall be fixed and notice given as required. 11.4 The meeting of the Council shall ordinarily be held twice a year. However, it may be held as many times as directed by the Chairperson. 11.5 The Member-Secretary shall maintain the minutes book of the meeting. 11.6 Other procedures necessary for the meeting shall be as determined by the Council itself.

Amended by the First Amendment. 12. Provision of Employees: 12.1 The Member-Secretary of the Council shall act as the administrative head of the Council. 12.2 The Council may appoint other employees as required. 12.3 The remuneration, terms of service and facilities of the Treasurer, Member-Secretary and other employees shall be as prescribed. 13. 14. 15. Mode of Business Conduct: The internal mode of business conduct of the Council and the Omitted by the First Amendment. procedure for meetings and internal mode of business conduct of the various committees and sub-committees constituted under Sub-section 10.1.6 shall be as determined by the Council. 16. To Remain under the Control of the Government of Nepal: 16.1 Forests, jungles and barren lands within the Pashupati Area shall remain under the control of the Government of Nepal. Any registration of forests, jungles, barren lands, and pavilions, platforms, rest houses, monasteries, temples or shrines within the Pashupati Area, including Bankali, Mrigasthali, Tilganga, Kailash Ved Vidhyashram, Dev Udyan, and the lands appertaining thereto, ponds, riverbeds, and forests in the name of any person or institution shall be void. Forests, jungles, barren lands under the control of the Government of Nepal shall not be given to any person or association for use or enjoyment with or without transfer of rights.

16.2 For the purpose of developing the Pashupati Area, the provision of Sub-section 16.1 shall not be deemed to prevent the Council from systematically developing and utilizing forests, jungles and fallow, barren lands within the Pashupati Area. Amended by the First Amendment. 17. Prior Approval of the Council Required: 17.1 Notwithstanding anything contained in prevailing Nepalese laws, royal seals, charters, orders and other instruments, for the implementation of approved plans and programs as required for fulfilling the objectives of the Fund, no person shall, in any manner, transfer rights over or carry out any construction activity on land subject to his/her right of use within the area Amended by the First Amendment. prohibited by the Council within the Pashupati Area. Construction activity in places other than those Amended by the First Amendment. prohibited by the Council shall be carried out only in accordance with the standards determined from time to time by the Council. 17.2 While determining standards pursuant to Sub-section 17.1, the Council Amended by the First Amendment. may also determine and implement standards relating to buildings, roads, paths, bridges, drainage, sewage, toilets, telephone line poles and other basic public utilities. 17.3 In places demarcated by determining standards pursuant to Sub-sections 17.1 and 17.2, no person shall carry out new construction, reconstruction, alteration of the original foundation and style, additions, reductions, repairs or other construction activities on land subject to his/her right of use without the prior approval of the Council. Amended by the First Amendment. 17.4 The Kathmandu Valley Urban Development Plan Implementation Amended by the First Amendment. Council, Municipality or other body having the responsibility to approve or pass maps, with or without maps, in matters relating to construction shall not pass maps or grant approval for construction without the prior approval of the Council. Amended by the First Amendment. 17.5 If any person carries out construction activity with or without map approval without prior approval of the Council, Amended by the First Amendment. or if a map is approved, the person carrying out such construction activity and the concerned person or body approving the map may be punished by the Council Amended by the First Amendment. to the extent mentioned in Sub-section 18.1 of Section 18 of the Urban Development Act, 2045.

The Council Amended by the First Amendment. may stop construction activity carried out without prior approval of the Council and any construction activity approved contrary to the standards or policy directions determined pursuant to Sub-section 10.1.17, Amended by the First Amendment. and may demolish any construction already made, and may recover the expenses incurred in such demolition from the concerned person. 17.6 A party dissatisfied with an order to stop, demolish or punish unauthorized construction activities pursuant to Sub-section 17.5 may file an appeal before the Appellate Court Amended by the First Amendment. within fifteen days from the date of hearing or receipt of such order. The decision of that Court in

that regard shall be final. Amended by the First Amendment. 17.7 The Council may make provision, control and prohibition requiring prior approval of the Council Amended by the First Amendment. for entering vehicles, parking, filming, taking photographs, pasting posters or pictures, holding any kind of fair, or other publicity within the Pashupati Area. Provided that no approval of the Council shall be required for holding or conducting traditional dances, songs, festivals, fairs. Amended by the First Amendment. 17.8 If approval is given contrary to the standards, policy directions determined by the Council Amended by the First Amendment. regarding the grant of approval for construction activity, the concerned person of the Kathmandu Valley Urban Development Plan Implementation Amended by the First Amendment. Council giving such approval shall be liable to departmental action. 17.9 The functions to be performed by the Council Amended by the First Amendment. pursuant to the above sub-sections shall be performed by the Kathmandu Valley Urban Development Plan Implementation Amended by the First Amendment. Council. Provided that the Council Amended by the First Amendment. may, if it wishes, perform or cause to perform such function itself or through any other body or officer at any time. Added by the First Amendment. 17.10 The Government of Nepal may at any time void any act done by way of giving or taking without prior approval of the Council before transferring or changing rights over various Guthi or public or government lands within the Pashupati Area in accordance with the powers conferred by prevailing law, or before giving any land to any person for use or enjoyment in any other manner. 17a. Provisions Relating to Worship of Shree Pashupatinath and Supervision of the Temple:

Amended by Some Nepal Laws Amending Act, 2063. 17a.1 The duty of supervising the Shree Pashupatinath Temple shall lie with the Fund, and the duty of conducting the various worships of the Shree Pashupatinath Temple shall lie with the Mul Bhatta.

17a.2 Except as provided in Sub-section 17a.1, all affairs under the purview of the Mul Bhatta of Pashupati shall remain under the Council, and the arrangement regarding the conduct, collection, supervision and control of receipts, and the expenses for various works performed in the temple by individuals, including dakshina, offerings, fees, and for various activities within the Pashupati Area shall be Omitted by Some Nepal Laws Amending Act, 2063. as prescribed by the Council. Omitted by Some Nepal Laws Amending Act, 2063. 18. Fund and Accounts: 18.1 The Council may provide or cause to be provided donations for the Fund from any area, institution or person within or outside Nepal. Omitted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. In such activity, the Council itself Omitted by the First Amendment. or through various committees or sub-committees constituted under Sub-section 10.1.6 or any other body or person, may contact and receive donations. 18.2 Other necessary matters relating to the procedure for receiving donations shall be as determined by the Council. 18.3 The Fund shall consist of the following amounts:- 18.3.1 Amount provided by the Government of Nepal for the development of the Pashupati Area, 18.3.2 Donations provided for the Fund by areas, institutions or persons within or outside Nepal, Omitted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. Added by the First Amendment. 18.3a. Amount received from the income of all types of Guthi lands related to Shree Pashupatinath and the Pashupati Area, Added by the First Amendment. 18.3b. Amount of dakshina and offerings received from various temples within the Pashupati Area, 18.3.3 Amount earned by investment ensuring maximum income and security of the Fund, 18.3.4 Fee or amount received in return for services provided by the Fund, and 18.3.5 Amount or donation received from other sources. 18.4 For the convenience of operating the Fund, the Fund may open accounts in any currency in banks within or outside the State of Nepal and deposit and operate accounts. 18.5 All expenses to be incurred on behalf of the Fund shall be borne by the Fund. 18.6 The operation of the Fund's account shall be as determined by the Council. Amended by Some Nepal Acts Amending Act relating to Sports and Culture, 2053. 18a.

Prior Approval of the Government of Nepal Required for Agreement: While entering into an agreement with any domestic or foreign institution or body in the course of conducting its business, the Fund shall obtain the approval of the Government of Nepal. 19. Accounts and Audit: 19.1 The accounts of income and expenditure of the Fund shall be maintained as determined by the Council. 19.2 The audit of the Fund shall be conducted by the Office of the Auditor General. 19.3 The Office of the Auditor General may, if it wishes, examine the account books, related documents and other cash and kind of the Fund at any time. Amended by the First Amendment. 20. Delegation of Power: The Council may delegate its powers to a member of the Council or to a committee or sub-committee constituted under Sub-section 10.1.6, or to a member of such committee or sub-committee, as required. Added by the First Amendment. 20a. Prior Consent of the Fund Required: Before exercising, within the Pashupati Area, powers conferred upon it by prevailing law, any government or non-government body shall obtain the prior consent of the Fund. If any activity is carried out within the Pashupati Area without such prior consent of the Fund, such activity shall be void. Amended by the First Amendment. 21. Power to Make Rules: 21.1 For the purpose of fulfilling the objectives of this Act, the Fund may make rules on the following matters, and the rules so made must be approved by the Government of Nepal:- 21.1.1 Relating to administrative work to be performed by the Fund, 21.1.2 Relating to financial work to be performed by the Fund, 21.1.3 Relating to remuneration, facilities and terms of service of the employees of the Fund, 21.1.4 Relating to the business of Pashupatinath Amalkot Kachahari and Pashupatinath Tahbil, 21.1.5 Relating to conducting worship according to the traditional religious practices and customs of Pashupatinath and Guhyeshwari, 21.1.6 Relating to development and construction work within the Pashupati Area, 21.1.7 Relating to the income of Guthis within the Pashupati Area, 21.1.8 Relating to the operation of monasteries and temples of deities within the Pashupati Area under exempt Guthis under Raj Guthi and private Guthis, 21.1.9 On other necessary matters. Added by the First Amendment. 21a.

To Prepare and Implement Code of Conduct: The Council shall prepare a code of conduct for all workers including priests, storekeepers, caretakers involved in the worship of Shree Pashupatinath Temple, and such code of conduct shall be implemented after approval by the Government of Nepal. 22. Contact with the Government of Nepal: The Fund shall contact the Government of Nepal through the Ministry of Culture, Tourism and Civil Aviation. Amended by Some Nepal Acts Amending Act to make Compatible with the Constitution of Nepal, 2075. 23. Facilities: 23.1 No direct or indirect taxes, fees or duties of any kind, including income tax, house and land tax, vehicle tax, interest tax, sales tax, registration fee, customs duty, imposed by the government or local Omitted by the First Amendment. level, shall be levied on the capital, income and property of the Fund. Provided, however, that:- 23.1.1 No exemption shall be given from customs duty, sales tax, excise duty and other taxes or duties included in the price of goods purchased from the local market for the day-to-day operation of the Fund. 23.1.2 The Fund shall pay fees or charges for any service. 23.2 The provisions relating to the ceiling under Section 7 of the Lands Act, 2021 shall apply to the land registered in the name of the Fund. 24. Saving and Power to Remove Difficulties: 24.1 Notwithstanding anything contained in prevailing Nepalese laws, royal seals, charters, orders or other instruments, the matters mentioned in this Act shall be according to this Act. 24.2 If any difficulty arises in the implementation of this Act, the Government of Nepal may issue such orders as it deems necessary to remove such difficulty. 25. Consequences after the Pashupati Area Development Fund Ordinance, 2043 becomes Inoperative: 25.1 After the Pashupati Area Development Fund Ordinance, 2043 becomes inoperative, unless a contrary intention appears, such inoperativeness shall not,- 25.1.1 revive anything not in force or not existing at the time the said Ordinance became inoperative, 25.1.2 affect any matter in progress under the said Ordinance or any other act done or suffered in pursuance thereof, 25.1.3 affect any right, privilege, obligation or liability acquired, accrued or incurred under the said Ordinance, 25.1.4 affect any penalty, forfeiture or punishment

incurred under the said Ordinance, 25.1.5 affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment, and any such legal proceeding or remedy may be instituted, continued or enforced as if the said Ordinance remained in force.